

Calendar Line 1**Case Name:** *Brandon Flora v Bass Pro Outdoor World, LLC***Case No.** 19CV359049Defendant Bass Pro Outdoor World, LLC's Motion to Dismiss for Failure to Bring Action to Trial Within Five Years (CCP §§ 583.310, 583.360)

Code of Civil Procedure section 583.310 requires an action to be brought to trial within five years after commencement of the action. Dismissal is mandatory unless the plaintiff establishes that sufficient time is excluded under Code of Civil Procedure section 583.340. (§ 583.360.) Plaintiff bears the burden of establishing that bringing the action to trial was impossible, impracticable, or futile within the meaning of section 583.340, subdivision (c). (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The parties agree that, after application of Judicial Council Emergency Rule 10, the operative deadline to bring this action to trial was May 26, 2025. The dispute is whether additional time should be excluded pursuant to section 583.340(c).

The Court recognizes that Plaintiff's prosecution of this action was not exemplary. Plaintiff did not aggressively pursue affirmative discovery, nor did Plaintiff obtain a trial date before expiration of the statutory period. These facts weigh in favor of dismissal. However, the inquiry is not limited to whether Plaintiff could have prosecuted the case more expeditiously. Rather, the Court must consider "all the circumstances in the individual case, including the acts and conduct of the parties," with the critical inquiry being whether Plaintiff exercised reasonable diligence under the circumstances. (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081, 1100.)

Considering the totality of the circumstances, the Court concludes Plaintiff has met that burden.

The record reflects that Plaintiff actively participated in the litigation by responding to written discovery, appearing for deposition, submitting to an independent medical examination, participating in ADR efforts, and appearing at case management proceedings. Although Plaintiff did not serve significant affirmative discovery until later in the litigation, the record does not establish that Plaintiff abandoned or failed to prosecute the action altogether.

The Court further finds that Plaintiff has demonstrated periods during which bringing the matter to trial was impracticable within the meaning of section 583.340(c). Counsel submitted evidence of extraordinary circumstances, including serious family medical emergencies, a premature birth, a federally declared natural disaster, and repeated criminal trial obligations entitled to statutory priority. The Court finds these circumstances materially distinguish this case from ordinary scheduling conflicts and constitute circumstances beyond Plaintiff's reasonable control.

The Court also considers Defendant's conduct. The record reflects Defendant failed to appear at multiple scheduled court proceedings over several years, resulting in the Court issuing an Order to Show Cause regarding Defendant's failure to appear. Defendant also identified

extensive periods of trial unavailability due to other trial commitments. Under *Gaines*, the conduct of both parties is relevant in evaluating reasonable diligence and whether bringing the matter to trial was impracticable.

After weighing all of the circumstances, the Court concludes Plaintiff has demonstrated sufficient periods during which bringing the matter to trial was impracticable under section 583.340(c). Accordingly, the time excluded under that statute extends the applicable deadline beyond the date on which this matter was ultimately set for trial. Mandatory dismissal under sections 583.310 and 583.360 therefore is not warranted.

The Court does not reach Plaintiff's alternative estoppel argument because the motion is resolved under section 583.340(c).

Accordingly, the motion is DENIED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

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Calendar Line 2

Case Name: *Ku, et al. v. Herchen, et al.*

Case No.: 21CV376210

DEFENDANT'S MOTION TO DISQUALIFY PLAINTIFFS' COUNSEL

I. Standing

As a threshold matter, Plaintiffs argue Defendant lacks standing because neither Defendant nor Kim Ngo was ever a client of Farling, Hecht & Davis LLP ("FHD").

California courts recognize that a standing requirement is implicit in attorney disqualification motions. Generally, only a current or former client whose own legally protected interests are affected may seek disqualification. (*Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356-1357.) The standing requirement exists to prevent the Rules of Professional Conduct from becoming tactical litigation weapons. As the Court of Appeal explained:

"The nonclient must show an invasion of a legally protected interest which is concrete and particularized.... A broad interest in the administration of justice is insufficient." (*Great Lakes*, supra, 186 Cal.App.4th at pp. 1357-1358.)

Defendant was never represented by FHD. Moreover, the alleged conflict arises from FHD's temporary representation of Kim Ngo in an unrelated automobile insurance matter. Ngo was never a party to the underlying wrongful death action in which judgment has already been entered. Defendant has not demonstrated how that representation invaded any legally protected interest belonging to him rather than asserting only a generalized concern regarding the integrity of the proceedings.

Although California recognizes a narrow exception where an ethical violation is so "manifest and glaring" that it infects the litigation itself (*Kennedy v. Eldridge* (2011) 201 Cal.App.4th 1197, 1204), the Court concludes Defendant has not made that showing here. The asserted conflict does not involve Defendant's confidential information, his attorney-client relationship, or representation adverse to Defendant himself. Rather, Defendant seeks to invoke an ethical issue arising from the representation of a third party in an unrelated matter after judgment had already been entered.

Accordingly, Defendant's standing to seek disqualification is, at best, doubtful. Even assuming Defendant has standing, the court analyzes on the merits.

II. FHD

There is no dispute that FHD represented Plaintiffs in this litigation for several years before David Farling undertook the representation of Kim Ngo in an unrelated automobile insurance claim in November 2025.